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COX COMMUNICATIONS, INC., ET AL. *v.* SONY MUSIC ENTERTAINMENT ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. 24–171. Argued December 1, 2025—Decided March 25, 2026

Under the Copyright Act, "[a]nyone who violates any of the exclusive rights of the copyright owner . . . is an infringer of the copyright." 17 U. S. C. §501(a). This Court has also recognized two categories of secondary liability, which means liability for the copyright infringement of another. Those two categories are "contributory" liability and "vicarious" liability. *Metro-Goldwyn-Mayer Studios Inc.* v. *Grokster, Ltd.*, 545 U. S. 913, 930.

This case concerns contributory liability, which requires that a provider intended its service to be used for infringement. A copyright owner can show the requisite intent in two ways. First, it can show that a party affirmatively induced the infringement. *Ibid.* Second, it can show that the party sold a service tailored to infringement. *Id.*, at 942 (Ginsburg, J., concurring). These two bases for contributory liability track patent law. See 35 U. S. C. §§271(b), (c).

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Cox Communications, Inc., is an Internet service provider serving approximately 6 million subscribers, each associated with a unique Internet Protocol (IP) address. Internet service providers like Cox have limited knowledge about how their services are used; they know which IP address corresponds to which subscriber account but cannot distinguish individual users or directly control how services are used. Cox contractually prohibits subscribers from using their connection to post, copy, transmit, or disseminate content that infringes copyrights.

Sony Music Entertainment and other major music copyright owners enlisted MarkMonitor to track copyright infringement across the Internet. MarkMonitor's software detects when copyrighted works are illegally uploaded or downloaded and traces the activity to particular IP addresses. During the roughly 2-year period at issue, MarkMonitor sent Cox 163,148 notices identifying IP addresses of Cox subscribers associated with infringement.

Sony sued Cox in Federal District Court, advancing two theories of secondary copyright liability. First, Sony alleged that Cox contributed to its users' infringement by continuing to provide Internet service to subscribers whose IP addresses Cox knew were associated with infringement. Second, Sony alleged that Cox was vicariously liable for

its users' infringement. The jury found in favor of Sony on both theories, found Cox's infringement willful, and awarded $1 billion in statutory damages. The District Court denied Cox's post-trial motion for judgment as a matter of law in relevant part. The Fourth Circuit affirmed as to contributory liability, reasoning that supplying a product with knowledge that the recipient will use it to infringe copyrights is exactly the sort of culpable conduct sufficient for contributory infringement. The Fourth Circuit reversed as to vicarious liability. This Court granted Cox's petition for certiorari as to contributory liability.

Held: The provider of a service is contributorily liable for a user's infringement only if it intended that the provided service be used for infringement, which can be shown only if the party induced the infringement or the provided service is tailored to that infringement; Cox neither induced its users' infringement nor provided a service tailored to infringement; accordingly, Cox is not contributorily liable for the infringement of Sony's copyrights. Pp. 592–596.

(a) "The Copyright Act does not expressly render anyone liable for infringement committed by another." *Sony Corp. of America* v. *Universal City Studios, Inc.*, 464 U. S. 417, 434. Ordinarily, when Congress intends to impose secondary liability, it does so expressly. *Central Bank of Denver, N. A.* v. *First Interstate Bank of Denver, N. A.*, 511 U. S. 164, 176–177. The Court's precedents have recognized specific forms of secondary copyright liability that predated the Copyright Act, but the Court is loath to expand such liability beyond those precedents.

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Under this Court's precedents, the intent required for contributory liability can be shown only if the party induced the infringement or the provided service is tailored to that infringement. See *Grokster*, 545 U. S., at 930; *Sony*, 464 U. S., at 440–441.

A provider induces infringement if it actively encourages infringement through specific acts, as in *Grokster*, where file-sharing software companies promoted and marketed their software as a tool to infringe copyrights. See 545 U. S., at 926. A service is tailored to infringement if it is "not capable of 'substantial' or 'commercially significant' noninfringing uses." *Id.*, at 942 (Ginsburg, J., concurring). For example, in *Sony*, the Court held that sale of the Betamax video tape recorder to the general public did not constitute contributory infringement. It reasoned that the tape recorder was "capable of substantial noninfringing uses" because it could be used to record copyrighted television programs for later personal viewing, which would not constitute infringement—even though it could also be used to reproduce and sell copyrighted programming, which would constitute infringement. 464 U. S., at 449, 456. The Court has repeatedly made clear—see *Kalem Co.* v. *Harper*

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Brothers, 222 U. S. 55, *Sony*, and *Grokster*—that mere knowledge that a service will be used to infringe is insufficient to establish the required intent to infringe. Pp. 592–594.

(b) Cox neither induced its users' infringement nor provided a service tailored to infringement. As for inducement, Cox did not "induce" or "encourage" its subscribers to infringe in any manner, *Grokster*, 545 U. S., at 930; Sony provided no "evidence of express promotion, marketing, and intent to promote" infringement, *id.*, at 926; and Cox repeatedly discouraged copyright infringement by sending warnings, suspending services, and terminating accounts. As for providing a service tailored to infringement, Cox's Internet service was clearly "capable of 'substantial' or 'commercially significant' noninfringing uses," *id.*, at 942; Cox simply provided Internet access, which is used for many purposes other than copyright infringement.

The Fourth Circuit's holding went beyond the two forms of liability recognized in *Grokster* and *Sony* by holding that "supplying a product with knowledge that the recipient will use it to infringe copyrights is . . . sufficient for contributory infringement." 93 F. 4th 222, 236. This holding went beyond the two bases for contributory liability recognized in the Court's precedent and conflicted with the Court's repeated admonition that contributory liability cannot rest only on a provider's knowledge of infringement and insufficient action to prevent it. Pp. 595–596.

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(c) Sony argues that the Digital Millennium Copyright Act safe harbor—under which Internet service providers cannot be secondarily liable for certain forms of copyright infringement if they have implemented "a policy that provides for the termination in appropriate circumstances of subscribers and account holders" who "are repeat infringers," 17 U. S. C. §512(i)(1)(A)—would have no effect if Internet service providers are not liable for providing Internet service to known infringers. The DMCA does not expressly impose liability for Internet service providers who serve known infringers; it merely creates new defenses from liability for such providers. The DMCA itself made clear that failure to comply with the safe-harbor rules "shall not bear adversely upon . . . a defense by the service provider," as here, "that the service provider's conduct is not infringing." §512(*l*). P. 596.

93 F. 4th 222, reversed and remanded.

THOMAS, J., delivered the opinion of the Court, in which ROBERTS, C. J., and ALITO, KAGAN, GORSUCH, KAVANAUGH, and BARRETT, JJ., joined. SOTOMAYOR, J., filed an opinion concurring in the judgment, in which JACKSON, J., joined, *post*, p. 596.

E. Joshua Rosenkranz argued the cause for petitioners. With him on the briefs were *Christopher J. Cariello*, *Alexandra Bursak*, *Edward Williams*, *Abigail Colella*, *Kamilyn Y. Choi*, *Roman Martinez*, *Sarang V. Damle*, and *Brent T. F. Murphy*.

Deputy Solicitor General Stewart argued the cause for the United States as *amicus curiae* urging reversal. With him on the brief were *Solicitor General Sauer*, *Principal Deputy Assistant Attorney General Roth*, *Aaron Z. Roper*, and *Daniel Tenny*.

Paul D. Clement argued the cause for respondents. With him on the brief were *Erin E. Murphy*, *Kevin Wynosky*, *Matthew J. Oppenheim*, *Scott A. Zebrak*, and *Jeffrey M. Gould*.*

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*Briefs of *amici curiae* urging reversal were filed for Altice USA, Inc., et al. by *Joshua D. Branson*, *Scott H. Angstreich*, *Derek C. Reinbold*, *Elana R. Beale*, and *William M. Herberer*; for the American Civil Liberties Union et al. by *Rebecca Tushnet*, *Mark Lemley*, *Jennifer Granick*, *Evelyn Danforth-Scott*, *Cecillia D. Wang*, and *Eden B. Heilman*; for the Common Sense Copyright Coalition et al. by *Thomas M. Johnson, Jr.*; for the Computer & Communications Industry Association by *Jonathan Band*, *Matt Schruers*, and *Ali Sternburg*; for the Electronic Frontier Foundation et al. by *Michael Barclay* and *Mitchell L. Stoltz*; for Engine Advocacy et al. by *Benjamin W. Berkowitz*; for Google LLC et al. by *Andrew J. Pincus*, *Archis A. Parasharami*, and *A. John P. Mancini*; for Grande Communications Networks, LLC, by *Daniel L. Geyser* and *Richard L. Brophy*; for Intellectual Property Law Scholars by *Alfred C. Yen*, *pro se*; for the Internet Society by *Raechel Keay Anglin*; for Public Knowledge by *John Bergmayer* and *Meredith Rose*; and for X Corp. by *Andrew H. Schapiro*, *William F. Patry*, and *Jessica A. Rose*.

Briefs of *amici curiae* urging affirmance were filed for the Association of *Amicus* Counsel by *Robert J. Rando* and *Charles E. Miller*; for the Authors Guild, Inc., et al. by *Kevin Amer*; for the Copyright Alliance by *Robert H. Rotstein*, *Eleanor M. Lackman*, and *Eric J. Schwartz*; for Former Members of Congress et al. by *Jacqueline C. Charlesworth*; for Intellectual Property Law Scholars by *Nancy E. Wolff*; for the National Center on Sexual Exploitation by *Hyland Hunt* and *Dana Kaersvang*; for the National Music Publishers' Association et al. by *Shannen W. Coffin* and

JUSTICE THOMAS delivered the opinion of the Court.

Countless people use the Internet for legal activities, but some use it to illegally share copyrighted works, such as songs and movies. The Copyright Act authorizes copyright owners to sue these copyright infringers. 17 U. S. C. §§501(a), 504(a). In this case, however, instead of suing those infringers, the copyright owners sued petitioners, Cox Communications, Inc., and its subsidiary, who provided the Internet connections that the infringers used. They contended that Cox was itself liable for copyright infringement because it continued to provide known infringers with Internet access.

Based on this theory of infringement, respondents, Sony Music Entertainment and other major copyright owners, secured a billion-dollar verdict against Cox. The United States Court of Appeals for the Fourth Circuit agreed that because Cox provided Internet service to known infringers, it was a willful infringer itself.

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Under our precedents, a company is not liable as a copyright infringer for merely providing a service to the general public with knowledge that it will be used by some to infringe copyrights. Accordingly, we reverse.

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Under the Copyright Act, copyright owners have the exclusive rights to copy, distribute, and digitally transmit their

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Michael J. Allan; for SoundExchange, Inc., et al. by *Jonathan Z. King*; and for Bruce E. Boyden, *pro se*.

Briefs of *amici curiae* were filed for the American Intellectual Property Law Association by *Nancy J. Mertzel* and *Salvatore Anastasi*; for the Association of American Publishers, Inc., et al. by *Cynthia S. Arato*; for Floor64, Inc., by *Catherine R. Gellis*; for the Motion Picture Association, Inc., by *Donald B. Verrilli, Jr.*, *Elaine J. Goldenberg*, *Daniel J. Kane*, and *Kelly M. Klaus*; for Professor of Patent Law by *Charles Duan*, *pro se*; for Christopher Cotropia et al. by *Andrew Dhuey*, and *Christopher Cotropia* and *James Gibson*, both *pro se*; and for Joshua Moon et al. by *Matthew D. Hardin*.